Independent Documentary Evidence and Accountability Report
Subject: Financial Management, Guardianship, Accommodation, Institutional Accountability and Redress Evidence repository: Barran Dodger — Documentary Archive Public archive: barrandodger.com Assessment date: 8 November 2026

INDEPENDENT DOCUMENTARY EVIDENCE AND ACCOUNTABILITY REPORT

Financial Management, Guardianship, Accommodation, Institutional Accountability and Redress

Subject: Dr Richard William McLean
Evidence repository: https://github.com/wezzo72/Barrandodger
Public archive: https://barrandodger.com
Assessment date: 8 November 2026

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1. Executive Summary

This report examines documentary material identified in the Barran Dodger archive concerning the subject's financial management, guardianship, accommodation, disability support and interactions with public institutions in New South Wales.

The central issue is whether the existing arrangements adequately protect the subject's rights, financial interests, personal autonomy, accommodation security and access to essential services — and whether the decisions and administrative actions underlying those arrangements warrant independent scrutiny.

The material identifies three connected objectives:

1. **Restoration of financial and personal independence:** review whether financial management and guardianship orders remain necessary, proportionate and consistent with the subject's current circumstances and wishes.
2. **Independent accountability:** examine the conduct, decisions, records and administrative processes of the NSW Trustee and Guardian, the Public Guardian, relevant service providers and other responsible institutions.
3. **Compensation and redress:** identify any proven financial loss, property loss, service failure or other legally compensable harm, and determine the appropriate remedies.

The strongest immediate procedural pathway is an application to the NSW Civil and Administrative Tribunal (NCAT) to review the existing financial management and

guardianship arrangements. Separate scrutiny of particular NSW Trustee decisions, including the vehicle disposal decision, is also warranted.

The available material raises serious questions. It does not, by itself, establish that every allegation is true, that every institutional action was unlawful, or that a particular compensation figure is payable. Those questions require examination of the original records, decision-making evidence and financial transactions.

2. Scope and Evidentiary Method

This is a documentary assessment, not a judicial determination, legal opinion or finding of misconduct.

The assessment distinguishes:

- **Recorded fact:** information contained in an identified institutional record or decision.
- **Reported information:** an account recorded by an institution or supplied by a person.
- **Allegation:** a claim requiring independent verification.
- **Inference:** a conclusion that may reasonably arise from the available material but is not directly established.
- **Unverified matter:** a question for which the underlying primary evidence has not yet been examined.

The archive contains original records, correspondence, administrative documents, analytical reports and documentary indexes. These categories must not be treated as interchangeable. A report written by the archive's author is not an independent institutional finding. An allegation in correspondence proves that the allegation was raised; it does not independently prove the underlying conduct.

Similarly, a SHA-256 hash or OpenTimestamps receipt can assist in demonstrating that a particular digital file existed in a particular form by a verifiable point in time. It does not establish the truth, accuracy or legal validity of the file's contents.

3. Principal Documentary Record

The following materials have been identified in the repository as particularly relevant to the current issues:

Record	Relevance
emails/ncat-2026-03-18-written-reasons.txt	NCAT's recorded reasons concerning guardianship and financial management
2024-10-16_NSW_Trustee_-Guardian_s122.pdf	NSW Trustee and Guardian statutory or decision record requiring examination

2025-11-14_NSW_Trustee_Vehicle_Disposal_Decision.pdf	Vehicle disposal decision and associated property interests
2025-11-20_NDIS_Plan_Approval_366406.pdf	NDIS plan approval and support arrangements
2026-01-20_Accommodation_Request_SIL_SDA.pdf	Accommodation request and relevant support needs
Report_01_MASTER_EVIDENCE_RECORD.txt	Archive evidence register
Report_02_THE_35_YEAR_CHRONOLOGY.txt	Chronological account of the institutional history
Report_04_INSTITUTIONAL_RESPONSE_MAP.txt	Institutional correspondence and response map
Report_05_CONTRADICTIONS_DISCREPANCIES_AND_UNANSWERED_QUESTIONS.txt	Identified inconsistencies and outstanding questions
Report_07_HUMAN_RIGHTS_AND_REMEDY.txt	Human rights and remedy analysis
Report_08_FORENSIC_FINANCIAL_RECORD.txt	Financial issues requiring reconciliation
Report_09_SERIOUS_ALLEGATIONS_CASE_FILES.txt	Serious allegations requiring evidentiary testing

The NCAT text extract has been examined. The original PDFs listed above have not all been

independently extracted and verified for this assessment. Their titles identify relevant documents, but their full contents must be examined before specific conclusions are attributed to them.

4. NCAT Guardianship and Financial Management Proceedings

4.1 Recorded procedural history

The repository's text extract of NCAT's written reasons dated 18 March 2026 identifies proceedings numbered **NCAT 2024/00324093**.

The reasons record that:

- On 16 October 2024, NCAT made a guardianship order for 12 months.
- The Public Guardian was appointed with functions concerning accommodation, services, healthcare and legal services.
- A financial management order appointed NSW Trustee and Guardian.
- A review hearing took place on 9 October 2025.
- The Tribunal proceeded without the subject being present.
- The Tribunal recorded information from a friend that the subject had left intending interstate travel, knew of the hearing and declined participation.
- The Tribunal recorded that a separate representative spoke with the subject for approximately two minutes.
- The subject opposed further orders, particularly continued financial management.
- NCAT reappointed the Public Guardian for three years from 9 October 2025.
- NSW Trustee and Guardian continued as financial manager.
- The reasons record that no further scheduled Tribunal review was required.

These are matters recorded in the Tribunal's reasons. They should not be represented as independent findings by this report.

4.2 Participation and procedural fairness questions

The hearing proceeded in the subject's absence. The reasons record the Tribunal's understanding of the circumstances and its decision not to call the subject because of an apparent driving and safety concern.

This raises questions that should be examined against the complete Tribunal file:

1. What attempts were made to notify the subject of the hearing?
2. What information did the Tribunal receive about the subject's location and willingness to participate?
3. What steps were taken to obtain the subject's direct views?
4. What instructions were provided to the separate representative?
5. Was the subject given a meaningful opportunity to challenge the continuation of financial management?
6. Were less restrictive alternatives considered?
7. What evidence supported the duration and scope of the orders?

The available extract records that the subject opposed further financial management. That objection is important and should be considered in any subsequent review.

It does not, without the full file and applicable legal analysis, establish that the hearing was invalid or that procedural fairness was denied.

4.3 Evidence relied upon by the Tribunal

The reasons summarise earlier medical and allied-health material and refer to findings concerning schizophrenia, persecutory delusions, methamphetamine dependence, ADHD, possible brain injury, cognition, insight and judgment.

These are descriptions of the material and findings relied upon by the Tribunal. This report does not independently diagnose the subject or determine whether those historical assessments accurately describe the subject's present functional capacity.

A current review should examine:

- the original assessments;
- their dates and purposes;
- the information available to the assessors;
- any subsequent changes in circumstances;
- the subject's current decision-making abilities;
- practical evidence of independent functioning;
- the availability of supported decision-making arrangements.

A historical diagnosis should not automatically be treated as conclusive evidence that every current financial or personal decision requires substitute decision-making.

4.4 The Public Guardian's accommodation position

The NCAT extract records that the Public Guardian's report recommended that certain accommodation and authorise-others functions could lapse, referring to the absence of decisions made under those functions and the practical difficulty of exercising them.

The hearing reasons also record concerns about supported independent living funding and financial implications, following which the Public Guardian supported retaining the accommodation function.

This sequence warrants examination.

The important questions include:

- What accommodation decisions had actually been made?
- What work had been undertaken to secure suitable accommodation?
- Why was the function initially considered unnecessary or unworkable?
- What changed before the Public Guardian supported retaining it?
- What evidence demonstrated that retaining the function was necessary?
- How were the subject's preferences and accommodation concerns considered?

The sequence does not itself prove improper conduct. It does identify an issue requiring a transparent explanation and examination of the underlying records.

5. Financial Management and Property

5.1 Continued financial management

The subject has expressed opposition to continued financial management.

The immediate question is whether the existing order remains necessary and whether a less restrictive arrangement could adequately protect the subject's interests.

A review should consider:

- current financial decision-making capacity;
- the subject's understanding of income, expenditure and financial obligations;
- access to ordinary living expenses;
- the ability to manage accounts with appropriate assistance;

- the practical effects of restrictions;
- the availability of limited assistance rather than comprehensive substitute financial management.

The objective should be an evidence-based assessment of present circumstances, not an automatic continuation of historical arrangements.

5.2 Vehicle disposal

The repository identifies a NSW Trustee and Guardian vehicle disposal decision dated 14 November 2025.

The decision should be independently examined against:

- proof of ownership;
- the vehicle's condition and valuation;
- the reason for disposal;
- the authority under which the decision was made;
- any consultation with the subject;
- the method of sale or disposal;
- the sale price and transaction costs;
- the destination of the proceeds;
- the financial records showing how the proceeds were applied.

Until these records are reconciled, this report does not conclude that the disposal was unlawful or that a particular amount was lost.

The vehicle transaction is nevertheless a specific and identifiable matter suitable for a documentary audit.

5.3 Financial records and alleged losses

The archive contains financial analysis and substantial monetary estimates.

Those estimates should not be treated as established debts or compensation entitlements without a transaction-level reconciliation.

Any financial claim should identify:

1. the asset, income or entitlement involved;
2. the amount actually received, withheld, spent or lost;
3. the person or institution responsible;
4. the date and legal basis of the relevant action;
5. the causal connection between the action and the loss;
6. any recovery, payment or offset;
7. the supporting primary documents.

The NCAT extract also refers to tax debt of approximately $90,000 accumulated before financial management. That figure is a matter recorded in the Tribunal material; it does not establish that the debt was caused by the NSW Trustee or any other institution.

6. Accommodation and Disability Support

The repository identifies an accommodation request dated 20 January 2026 and an NDIS plan approval dated 20 November 2025.

These documents are important to assessing whether the existing accommodation and support arrangements meet the subject's needs.

The relevant questions include:

- What supports were approved?
- What supports were actually delivered?
- Were there gaps between approved supports and delivered services?
- Were accommodation requests acknowledged and assessed?
- Were safety concerns and complaints documented?
- Were communication difficulties addressed?
- Were the subject's preferences considered?
- Was there a documented plan to maintain continuity of accommodation and essential support?

A plan approval is not proof that all approved supports were subsequently delivered. Equally, a complaint about a provider is not, by itself, proof of a safeguarding breach.

Provider conduct should be assessed against service agreements, support logs, incident reports, risk assessments, communications and the applicable NDIS requirements.

7. Institutional Accountability

The documentary issues involve different institutions with different legal responsibilities. They should not be collapsed into one general allegation.

7.1 NSW Trustee and Guardian

The relevant scrutiny concerns:

- the basis for continued financial management;
- access to essential living expenses;
- the handling of financial decisions;
- the vehicle disposal;
- accounting and reporting;
- responses to complaints;
- the availability of less restrictive arrangements.

The NSW Trustee should be asked to provide a complete account of the financial management, including transaction records and the reasons for significant decisions.

7.2 Public Guardian

The relevant scrutiny concerns:

- the exercise of accommodation and service functions;
- the subject's participation in decisions;
- the reasons for retaining particular functions;
- the handling of accommodation requests;
- the response to concerns raised by the subject;
- the effectiveness of the current arrangements.

7.3 NCAT

The Tribunal's decision should be reviewed through the available statutory processes.

The complete Tribunal file is required to assess the evidence, procedural history, notice, representation and reasoning.

7.4 NDIS providers and safeguarding

Provider-related complaints should be referred to the NDIS Quality and Safeguards Commission where they concern provider conduct, service quality, incidents, neglect, abuse or other safeguarding issues within its jurisdiction.

The complaint should identify the specific provider, conduct, date, supporting record and requested safeguarding response.

7.5 NSW Ombudsman

The NSW Ombudsman is an appropriate independent oversight body to consider complaints about NSW public administration, including NSW Trustee and Guardian.

The complaint should focus on identifiable administrative decisions, failure to respond, unreasonable processes, inadequate explanations, record-keeping and any systemic concerns supported by evidence.

8. Available Legal and Administrative Remedies

8.1 Review of the financial management order

NCAT provides a process to review or revoke a financial management order.

An application should ask the Tribunal to assess whether the order remains necessary and whether the subject can manage their affairs, with or without appropriate support.

The application should also request consideration of less restrictive alternatives and practical arrangements for essential living expenses.

Official information and application form:

- NCAT — Review or revoke a financial management order
- NCAT — Financial management review/revocation form

8.2 Review of the guardianship order

A separate application should seek review of the guardianship order and each function currently assigned to the Public Guardian.

The application should ask whether all functions remain necessary, whether any should be narrowed or removed, and whether supported decision-making arrangements can replace substitute decision-making.

Official form:

NCAT — Request review of guardianship order

8.3 Appeal

NCAT appeal procedures generally provide a 28-day period, subject to the applicable rules and the date of notification or reasons. An extension may be requested in appropriate circumstances. An appeal is not the same as a review based on current circumstances, and a stay is not automatic.

The timing and available grounds should be assessed by a lawyer against the actual orders and notification records.

8.4 NSW Trustee decision review

The NSW Trustee's published process provides for an internal review request, generally within 28 days of being informed of the decision, followed by the applicable external review process.

The subject should identify the specific decisions being challenged and request written reasons and supporting records.

Relevant contact:

NSW Trustee and Guardian — Customer Resolutions

Email: complaints@tag.nsw.gov.au

8.5 Independent investigation

A complaint to the NSW Ombudsman should request examination of the specific administrative conduct and decisions, including the handling of financial management, the vehicle transaction and the response to complaints.

A separate complaint to the NDIS Quality and Safeguards Commission should address any specific provider-related safeguarding issues.

8.6 Legal assistance

The Legal Aid NSW Mental Health Advocacy Service provides assistance concerning guardianship and financial management matters.

Legal Aid NSW — Mental Health Advocacy Service

9. Compensation and Redress

The subject seeks restoration, accountability and compensation.

Those objectives should be pursued separately so that the immediate restoration of rights and access to essential resources is not delayed by a complex damages claim.

Potential heads of loss requiring investigation include:

- loss or reduction of access to funds;
- loss of property or vehicle value;
- unauthorised or disputed expenditure;
- costs incurred because of administrative or service failures;
- loss of income or employment opportunities;
- accommodation-related financial loss;
- costs arising from disrupted support;
- other legally recognised consequential loss.

Each claim requires proof of duty, breach or other relevant legal basis, causation, loss and any applicable defence or limitation period.

Limitation periods vary according to the cause of action. General contract and tort claims commonly have six-year periods, while personal injury claims can have different and more complex time limits. Legal advice is necessary before deciding which historical events remain actionable.

No final compensation amount is established by this report. The financial estimates in the archive should remain identified as estimates until independently reconciled against primary evidence.

10. Priority Records to Be Preserved and Examined

The following records are central to a complete independent examination:

NCAT

- complete application and review files;
- original evidence relied upon;
- hearing recordings or transcripts, if available;
- notices and service records;
- representative instructions and reports;
- orders and written reasons.

NSW Trustee and Guardian

- complete financial management ledger;
- bank statements and transaction records;
- invoices and receipts;
- correspondence and decision notes;
- vehicle ownership, valuation, disposal and proceeds records;
- records concerning access to living expenses;
- complaint and internal review records.

Public Guardian

- case notes and contact records;
- accommodation assessments;
- service and healthcare decisions;
- consultation records;
- risk assessments;
- communications with providers and the subject.

NDIS and providers

- plan approval and funding records;
- service agreements;
- rosters and support logs;
- incident and complaint records;
- risk assessments;
- records of supports actually delivered.

Financial institutions

- relevant account statements;
- transaction histories;
- account access restrictions;
- instructions received from third parties;
- records identifying the authority relied upon for restrictions.

Preservation requests should be made promptly. Original documents should be retained without alteration.

11. Human Rights and Proportionality

The central human rights issue is whether the subject's autonomy, dignity, participation and access to essential resources are being protected through arrangements that are necessary and proportionate.

The relevant principles include:

- respect for individual autonomy;
- participation in decisions affecting one's life;
- equal recognition before the law;
- protection of property and financial interests;
- access to appropriate accommodation and support;
- protection from neglect, abuse and exploitation;
- access to an effective review and complaint process.

The existence of a guardianship or financial management order does not remove the need for ongoing scrutiny of how the order is exercised.

The practical test should be whether the current arrangements achieve their protective purpose while imposing no more restriction than is necessary.

12. Findings and Outstanding Questions

On the material presently examined, the following conclusions can be stated.

Finding 1 — Continued financial management requires current review.

The subject's recorded opposition to continued financial management and the passage of time since the original order make a current assessment of necessity and less restrictive alternatives important.

Finding 2 — The NCAT hearing and evidence require examination.

The Tribunal's reasons record that the 2025 review proceeded without the subject present. The complete file is necessary to assess notification, representation, participation and the evidence supporting the orders.

Finding 3 — The vehicle disposal is a specific financial matter requiring audit.

The identified decision should be tested against ownership, valuation, authority, sale proceeds and accounting records.

Finding 4 — Accommodation and support arrangements require practical verification.

The existence of an approved NDIS plan does not establish that the approved supports were delivered or that accommodation needs were met.

Finding 5 — Independent administrative scrutiny is warranted.

The issues concerning financial management, property decisions and complaints are sufficiently specific to justify requests for records, explanations and appropriate external review.

Finding 6 — Compensation remains unquantified.

The archive identifies potential financial and other losses, but a legally supportable compensation figure requires primary evidence and a causal analysis.

Finding 7 — The immediate objective should be restoration of rights and practical independence.

The review of financial management and guardianship should proceed independently of, and without unnecessary delay from, any later compensation claim.

13. Recommended Action

The recommended sequence is:

1. Seek NCAT review of the financial management order and request consideration of revocation or a less restrictive arrangement.
2. Seek NCAT review of the guardianship order and each individual function.
3. Request an urgent written explanation and practical arrangement for access to essential living expenses.
4. Request the complete NSW Trustee financial ledger and vehicle disposal records.
5. Request the Public Guardian's case records and accommodation decision history.
6. Refer substantiated administrative concerns to the NSW Ombudsman.
7. Refer specific provider safeguarding concerns to the NDIS Quality and Safeguards Commission.
8. Obtain independent legal assistance to assess any appeal, review, property recovery or

compensation proceedings.

9. Reconcile all claimed losses against original financial and institutional records before stating a final damages amount.

14. Conclusion

The documentary record identifies a serious set of questions about the continued necessity and proportionality of financial management and guardianship arrangements, the exercise of institutional decision-making powers, the handling of property and financial records, and the adequacy of accommodation and disability support.

The most important immediate issue is not the publication of another allegation or the assertion of an unverified compensation figure. It is securing a meaningful, independent review of the arrangements that currently affect the subject's ability to make personal and financial decisions.

The subject's opposition to continued financial management is recorded in the NCAT reasons. That position should be addressed through a current, evidence-based review that considers the subject's present abilities, wishes and available support.

The vehicle disposal and financial management accounts should be independently reconciled. Accommodation and provider-related concerns should be examined against actual service records. Any compensation claim should be calculated only after the evidence establishes the relevant loss and its cause.

The appropriate outcome is a process capable of delivering:

- restoration of financial and personal independence where supported by the evidence;
- transparent accounting for decisions made on the subject's behalf;
- independent investigation of substantiated administrative or provider failures;
- recovery of property or funds where legally justified;
- compensation for proven loss where a legal entitlement exists;
- accommodation and support arrangements that respect the subject's dignity, safety and participation.

This report is an evidence-based request for review, accountability and redress. It is not a finding of criminality, corruption, conspiracy or legal liability against any individual or institution.

Documentary integrity note: This report does not alter the original repository or its source documents. Any public release of NCAT material must also take account of applicable publication restrictions, including the restriction recorded in the Tribunal reasons under section 65 of the Civil and Administrative Tribunal Act 2013 (NSW).

Important qualification before publication

The report is deliberately careful about what has and has not been verified. In particular, the original vehicle disposal, financial management and NDIS PDFs still need full examination

before the report can responsibly make findings about the actual transactions, amounts or decisions.

The NCAT reasons also record a publication restriction under section 65. The report should therefore be checked for compliance before public distribution, particularly where it could identify witnesses or other participants.

The next essential piece of work is a primary-document audit of the vehicle disposal decision and NSW Trustee financial accounts. That is where the report can move from identifying questions to establishing exactly what happened and what, if anything, is recoverable.

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